



The Backlog the Department Could Not Count

Teacher copy (everything in the student copy, plus answers and teaching notes)

The article, marked for rhetorical devices (one color throughout):

- 1 In May 2026, the Department of Education filed a court-ordered status report and overstated the number of pending income-driven repayment applications for April by nearly 336,000. The Department attributed the gap to a servicer reporting error and put the corrected backlog at 1,649,874 pending applications. The reports are filed in a lawsuit the American Federation of Teachers brought against the Department, so the numbers are watched by the other side.
- 2 Everyone agrees on the starting point: a benefit only works if the records behind it are accurate. If a servicer's records are wrong, a borrower can be placed in the wrong repayment status, billed for the wrong amount, or made to wait on a refund that should already have arrived [Parallelism]. That premise is not in dispute. It is the stated reason the system keeps the records at all.
- 3 Follow it one step. Accurate records do not maintain themselves; someone has to check the servicers. In February 2025, the Office of Federal Student Aid stopped reviewing the accuracy of loan servicers' records, citing a lack of staff. The staffing context is on the record: between January and December 2025, the office went from 1,433 employees to 777, a cut of 46 percent.
- 4 Checking mattered because the servicers had been failing the check. Before the reviews stopped, four of the five loan servicers did not meet the Department's standards for keeping accurate records, and they faced penalties of about \$850,000. The Government Accountability Office reported in March 2026 that the substitutes the Department named, its data quality assessments, its cross-system validation, its audits, its surveys, its SOC 1 reports [Asyndeton], were not substitutes for checking servicer accuracy directly. In January 2026, the Department's own independent auditor had already labeled the reliability of its student loan data a material weakness [Diction].
- 5 The 336,000 sits at the end of that chain. A servicer fed a wrong number into a feed that fed a court report, and nothing in between caught it. [Logos] The error was admitted, but only after it had already been filed. The same April reports also recorded a processing record: servicers cleared 456,594 IDR applications that month, the most to date. Progress and unreliability are running at the same time.
- 6 This is not the only seam showing. The backlog had once stood at 1,985,726 applications as of April 30, 2025; it is lower now. [Juxtaposition] What the record leaves is a plain statement of condition: a benefit system whose own auditor flags its data, whose direct accuracy checks have been switched off, and whose headline figures still move by hundreds of thousands when somebody finally reconciles the feed. That is where it stands, pending the next report.

Devices, and why they are here:

Parallelism (paragraph 2): “placed in the wrong repayment status, billed for the wrong amount, or made to wait on a refund that should already have arrived”

Aligns the three borrower consequences in matching past-participle phrases (placed, billed, made to wait) so the harm of a wrong record reads as a single ordered class of outcomes rather than scattered examples; the repeated grammatical shape is what makes the stakes feel systematic and inevitable.

Asyndeton (paragraph 4): “its data quality assessments, its cross-system validation, its audits, its surveys, its SOC 1 reports”

Strips conjunctions from the list of the Department's named substitutes (assessments, validation, audits, surveys, SOC 1 reports) so they pile up fast and feel like a stack of paperwork that still fails to do the one thing, reinforcing the GAO's judgment by sheer accumulation.

Diction (paragraph 4): “material weakness”

Quotes the auditor's term of art 'material weakness' rather than paraphrasing it, letting the borrowed institutional language carry the severity flatly; the precision is the ethos, and the cold accounting word does the work an emotive adjective would otherwise do.

Logos (paragraph 5): “A servicer fed a wrong number into a feed that fed a court report, and nothing in between caught it.”

Names the precise mechanism of the error in one causal sentence (a wrong number passing untouched through a feed into a court filing), cashing out the abstract claim about validation gaps as a concrete sequence the reader can follow.

Juxtaposition (paragraph 6): “The backlog had once stood at 1,985,726 applications as of April 30, 2025; it is lower now.”

Sets the peak backlog figure beside the lower current figure in a single semicolon-joined sentence, placing improvement and scale side by side without comment so the reader weighs both at once rather than being told which to feel.

AP-style multiple choice:

1. In the third and fourth paragraphs, the writer presents the end of servicer accuracy reviews and the prior failures of four of five servicers primarily in order to
 - A) show that the Government Accountability Office had recommended ending the accuracy reviews
 - B) argue that the staffing cuts at Federal Student Aid were the single cause of the backlog's growth
 - C) establish that the 336,000 overstatement was the predictable result of a documented chain, not an isolated slip
 - D) demonstrate that the loan servicers deliberately concealed inaccurate records from the Department
2. The writer quotes the auditor's phrase 'material weakness' and reports figures such as 1,649,874 and 456,594 rather than rounding them. In context, these choices most directly establish a tone that is
 - A) alarmed and urgent, using exact numbers to pressure the reader toward a conclusion
 - B) measured and on-the-record, letting precise figures and sourced terms carry weight the writer declines to editorialize
 - C) detached and indifferent, treating the borrowers behind the figures as beside the point
 - D) admiring of the Department's transparency in disclosing its own errors

Multiple choice answer key:

1. Answer C. The two paragraphs are consecutive links in the piece's dialectic: oversight stopped, and the servicers being overseen had already been failing, so the later error reads as the chain's product. The 'single cause' option is the over-broad/extreme trap; the writer ties the error to a chain (auditor warning, stopped checks, prior failures), never to staffing alone. The 'deliberately concealed' option is out-of-passage import: the text reports an admitted error and missed performance standards, never intent to hide. The 'GAO recommended ending' option is an inverted relationship: the GAO faulted the substitutes for the reviews, it did not endorse stopping them.

2. Answer B. The exact, unrounded figures and the borrowed audit term keep the authority in the cited record, which is the Ledger's flat, sourced register. The 'alarmed and urgent' option is right-device-wrong-effect: the precision is real but its purpose is restraint, not pressure. The 'detached and indifferent' option overstates into the extreme trap; the writer foregrounds borrower harm (wrong status, wrong bill, delayed refund), so indifference misreads the second paragraph. The 'admiring of transparency' option is true-but-not-the-function: the writer notes the error was admitted, but the overall tone is assessment, not praise, and one clause does not set the passage's tone.

Discussion questions:

1. The writer never states that the Department acted wrongly, yet a reader finishes with a clear sense of the system's condition. How does the dialectical chain (shared premise, stopped checks, prior failures, the resulting error) produce a judgment without the writer asserting one?
2. The piece reports a processing record (456,594 applications cleared in a single month) in the same paragraph as the data error. What does including a fact that cuts against the main line of concern do to the reliability of the writer's account?

Sample strong discussion responses:

1. The judgment arrives as residue rather than claim. The writer opens from a premise no one disputes, that a benefit works only if its records are accurate, then walks one verifiable step at a time: the accuracy checks stopped, the servicers being checked had already been failing, the auditor had flagged the data, and so the 336,000 error reads as the chain's output rather than a fluke. Because each link is sourced and small, the reader assembles the verdict themselves. The writer's restraint is the persuasion; by refusing to say 'this is a failure,' the piece makes the conclusion feel compelled by the record instead of urged by an opinion.
2. Reporting the processing record alongside the error makes the account more credible, not less. A writer building only toward alarm would suppress the 456,594 figure because it complicates the story. Including it signals that the writer is following the record wherever it goes, which is exactly the Ledger's source of authority. It also sharpens the real point: progress and unreliability are running at once, so the problem is not that nothing is being done but that the numbers describing what is being done cannot be trusted to the hundred-thousand. The inconvenient fact strengthens the piece because it shows the writer is not cherry-picking.

Writing prompt (Homework or extended in-class, Q3 argument):

The opener traces how a benefit system can keep functioning, and even set processing records, while the data describing it grows unreliable after direct oversight is reduced. From this it implies a debatable proposition: that accurate measurement of a public program matters as much as the program's output, because a benefit administered on unreliable records cannot be trusted to reach the right people in the right amounts. Write an essay that defends, challenges, or qualifies the claim that accountability for a public service should rest on the reliability of its data as much as on the volume of work it produces. Use evidence from your reading, observation, or experience to support your line of reasoning.

Common misconceptions to watch for:

- Students may read the quoted phrase 'material weakness' (device 3) as the writer's own characterization or as emotional emphasis. It is a borrowed term of art from the independent auditor; the rhetorical move is letting a sourced word carry severity, which is diction, not the writer venting. Tag and discuss it as borrowed institutional language, not opinion.
- Students may label the conjunction-free list of substitutes (device 2) as parallelism rather than asyndeton. The members are parallel in grammar, but the marked device is the omission of conjunctions that speeds the pile-up; asyndeton names that omission specifically. Watch for students who tag the parallel shape and miss why the conjunctions are gone. Note that the consequence list in the second paragraph (device 1) IS tagged as parallelism precisely because it keeps its conjunction 'or'; the contrast between the two lists is the teaching point.
- Students often assume a Ledger-style piece is 'neutral' in the sense of having no position. It does take a position; the position arrives as the residue the chain leaves, not as a stated thesis. Help students see that restraint and a clear conclusion are not contradictory here.
- Students may treat the falling backlog numbers and the processing record as evidence that the writer is reassuring the reader. The juxtaposition (device 5) places improvement beside scale without resolving it; the point is that progress and unreliability coexist, not that the situation is improving overall.

AP exam alignment:

This opener teaches how a writer can reason forward from a premise the audience already accepts to a conclusion the audience may resist, building a verdict through a chain of sourced, attributed steps rather than asserting it. It models how parallelism (the aligned borrower-consequence list), diction (a borrowed audit term), precise unrounded figures, and asyndeton sustain a measured, on-the-record tone, and how including a fact that cuts against one's own line strengthens credibility. It supports Skill Categories 3 (Claims and Evidence), 5 (Reasoning and Organization), and 7 (Style).